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The Emergence of the Mafia in Post-War Syria: The Terror-Crime Continuum

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ABSTRACT

This paper aims at building from existing sociological, economic, political and strategic knowledge an analysis that anticipates the emergence of the Mafia. By employing Mill's method of agreement, the research finds that it is very probable that the aftermath of the Syrian War yields fertile terrain for the emergence of the Mafia. The reasons of this are fourfold: (1) as the black market expands in Syria and the rights of private property become blurred once 'peace' is restored, (2) the postwar Syrian State will be either unwilling and unable to protect the property rights of its population, (3) this situation would result in a widespread institutional distrust that will provoke the population to seek alternative forms of private protection; (4) an abundant supply of insurgents and terrorists trained in violence will meet the emergent demand. This conclusion sheds light on the importance for policymakers to take prompt action to change the probable course of history of Syria.

According to an extensive body of literature, we are on the cusp of a shift from a post-crime to a pre-crime society.[1] As globalization stretches the reach of threats, efforts are focused more than ever on detecting and fighting a crime *before* it occurs.[2] While the focus on the prevention of crime has been heavily criticized due to its association with the infringement of individual rights, a benign application of the principle of a pre-crime framework can occur through the identification of factors that prompt the emergence of crime, so as to address said factors before the associated risks materialize.[3]

Accordingly, the point of this paper is to erect from existing sociological, economic, political, and strategic knowledge an analysis that anticipates the emergence of the Mafia. [4] Using Gambetta's framework on the origins of the Mafia in Sicily as the backbone of my research, I argue that the aftermath of the Syrian War could yield fertile terrain for the emergence of the Mafia.[5] The reasons for this are fourfold: (1) the black market will most likely expand, and the rights of private property will be blurred once 'peace' is restored upon the cessation of the war, (2) in light of the developments of the war, the postwar Syrian State will be unwilling (in the case of the black market) and unable (in the case of land restitution) to protect property rights of the population, (3) a resulting widespread distrust in the institutions of the emerging frail state will provoke

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the population to seek alternative forms of private protection, and (4) an abundant supply of insurgents and terrorists trained in violence will meet the emergent demand. The intersection of these four factors will most likely result in the formation of a Mafia, or an extra-legal form of governance constituted of organized criminal groups (OCGs) that are specialized in the supply of protection.[6] The process through which terrorist activity carried out during times of political unrest morphs into organized criminal activity during times of 'peace', illustrates the terror-crime continuum and sheds light on the intimate relationship between (organized) crime and terrorism. This is not to say that the Mafia will inevitably sprout once the Syrian War is over, none the least because to begin with, the conceptual and practical lines between times of 'war' and times of 'peace' are very thin and blurry.[7] Added to that is the fact that some Mafias, were able to develop into fully legitimate political parties at the cessation of conflict, albeit those being exceptional and contested cases.[8] Nonetheless, the historically proven realization that (organized) crime and terrorism do make great bedfellows is essential to policymakers because it prompts them to prepare the terrain for the risks that could materialize at the suspension, if not end, of a country's state of emergency.[9] The point of this predictive framework is therefore to provide policymakers with insight into the factors that could heavily contribute to the formation of the Syrian Mafia, with the ultimate intention of tackling those in a proactive and preventative manner.

To make the claim that the Mafia is most likely to emerge in Syria's postwar setting, this paper is organized as follows. In the first part, I engage in a theoretical deliberation on the origins of the Mafia. By sewing into the discussion examples of well-recognized existing Mafias, I introduce Gambetta's framework as a robust analytical tool for anticipating future developments in organized crime. To do so I employ Mill's method of agreement, which would help provide evidence of Syria's pertinence to the discussion. In the second part of the paper, I test my hypothesis by analyzing postwar Syria against the backdrop of factors correlated with the emergence of the Mafia. I divide this part into two sections: in the first, I provide a brief on the antecedents of the potential emergence of the Mafia in Syria; in the second, I lay out the postwar conditions that could lead to the conception of the Mafia. Finally, I conclude by suggesting some measures that have the potential to change the current tide and prevent the Mafia from getting entrenched into Syrian soil.

Theoretical Framework

In his work, Tilly sheds light on the resemblance between OCGs and the state, portraying states as "quintessential protection rackets with the advantage of legitimacy".[10] By "regulat[ing] and control[ling] the production and distribution of a given commodity or service unlawfully,"[11] OCGs come to act as state-like entities in a "stateless field with a vacuum of authority".[12] However, the main difference between the State and OCGs is that while the former enjoys Weberian legitimacy, the latter threatens the legitimacy of the former by acting on the margin of the law without regard to considerations of justice, fairness and the well being of society.[13,14]

As such, the political theory on organized crime recognizes that OCGs are less-than-ideal arrangements that order exchanges and repeated interactions both in the

'upperworld' (licit markets) and in the underworld (illicit markets). A subset of OCGs is the Mafia: a form of territorial extra-legal governance that is distinct in its specialization in the supply of *criminal protection*.[15] By default, as OCGs, Mafias engage in all sorts of criminal activities ranging from extortion to racketeering and corruption.[16,17] At the same time however, previously conducted analysis and accounts evidence that the Mafia is idiosyncratically known for providing real protection services which include "protection against extortion, protection from theft and police harassment, […] elimination of competitors, […] intimidation of lawful right-holders, and the settlement of a variety of disputes."[18] Undoubtedly, these protection services would be carried out using all but lawful methods such as intimidation, duress and corruption and would apply only to those who can afford it.[19]

The Mafia, in sum, is considered as a unique kind of OCG that "performs state-like functions such as the policing and enforcement of contracts by way of violence and coercion".[20] While in the 'upperworld' the services of the Mafia are demanded by legal businesses only when the state fails to protect their property rights, the demand for the Mafia in the underworld is ubiquitous.[21] This is not only because the regulatory role of the state is absent by default in illicit markets, but also because properties in the underworld are particularly "vulnerable to lawful seizure and theft, and property rights are disputed to a much greater degree than in legal markets".[22] Moreover, in contrast to the 'upperworld,' information about the goods traded in the underworld is not always clear or credible, and businessmen in these markets "cannot freely advertise their good reputation, [as] creditors disappear, informants consort with the police and undercover agents try to pass themselves off as bona fide fellow criminals".[23]

As to the origins of the Mafia, recent scholars challenge the previously upheld idea that its emergence is reflective of "social and economic backwardness and chaos".[24] Instead, it is now widely accepted that the Mafia emerges in societies that undergo an economic expansion that is unaccompanied by (the enforcement of) legislations that effectively protect property rights and resolve business disputes.[25] An important corollary to this is the recognition that the state plays a primary role in shaping the emergence of the Mafia.

In line with new paradigm, Hobsbawn, for instance in his classic work, *Primitive Rebels*, suggests that the Mafia is the product of a society where public order is nonexistent and where there is prevalent hostility towards the authorities.[26] Citizens, in that context, will perceive the Mafia as a parallel mechanism of law and organized social power that is more effective than the state.[27] Similarly, Block and Arlacchi and Steinberg assert that the emergence of the mafia is due to the failure of the state in achieving the monopoly of coercion.[28,29]

In spite of the diverse perspectives in criminological literature, the most widely accepted framework today is that of Gambetta, which germinated out of his is extensive analysis on the emergence of the mafia in Sicily. In considering the work of Leopoldo Franchetti, an Italian social scientist that provides a comprehensive account on the Sicilian Mafia and its environment, Gambetta argues that the Mafia is a rational response of southerners to the widespread lack of trust in the new Italian State.[30,31] Understood as "a specific economic enterprise, an industry which produces, promotes

and sells private protection,"[32] the Mafia emerges when *demand* for private protection meets the *supply* of the same.[33]

In his case study on Sicily, Gambetta locates the emergence of the Mafia in the dusk of a feudalistic society and the dawn of a democratic one. The accompanying transition to the market economy entailed that property previously exclusively owned by the monarch would become a "market commodity subject to legally defined individual property rights".[34] However, for the market to function properly and for the transition to run smoothly, Gambetta argues that it is essential for property rights to be clearly defined.[35] According to Varese, the following are the characteristics of well-defined property rights:

> "(1) to every property is assigned a well-defined owner or owners with exclusive rights of ownership,
>
> (2) the owner of the property is the recipient of the residual income accruing to the assets, and
>
> (3) the owner has the right to control or determine the use of existing assets, to restructure the property and to sell or lease it."[36]

However, this proved to not be the case in Sicily, as property rights were "difficult to enforce and [...] a source of constant strife".[37] The lack of centralization of property rights protection in Sicily contributed to the prevalent distrust in the state, leading therefore to a significant increase in the demand for private protection.[38] Refraining from falling into a simplistic functionalist argument, Gambetta makes it clear that the demand for protection alone does not spur its supply.[39] In the case of Sicily, the supply of protection can be traced to the availability of professionals trained in violence who, unemployed as a result of the demise of feudalism, formed *autonomous* and self-employed groups that provided private protection.[40]

The following framework can thus be inferred from Gambetta's argument. The mafia is likely to arise when: (1) there is an economic transformation that leads to an upsurge in the number of property owners and transactions involving private property, (2) the spread of ownership is not matched by the enactment of clearly-defined property rights legislations and their enforcement, (3) disillusioned by the incompetence of the state, citizens seek protection from alternative sources in fear of losing property, and (4) men trained in violence are available to meet the increasing demand for autonomous private protectors.

Can Gambetta's Framework be Applied to Syria?

Despite being originally formulated to explain the emergence of the Mafia in Sicily by drawing upon examples from the Russian and Japanese Mafia, I attempt to evidence that Gambetta's framework enjoys external validity. An extensive study conducted by Varese reveals that the Russian Mafia emerges and develops in the context of an imperfect transition to the market initiated upon the collapse of the Soviet Union.[41] Varese demonstrates that the transition to capitalism in Russia was not matched by a property rights regime that combined clear legislation and effective enforcement.[42] As a result of state incompetence, citizens either internalized their protection or resorted to the

"Sicilian solution"[43] that involved hiring protection suppliers. The widespread demand for private protection in the newly formed market economy was met by the availability of autonomous suppliers: local policemen encouraged by the Interior Ministry, former KGB, army officials, and criminals constituted the unemployed 'violent' proletariat that readily provided bidders with their missing share of private protection.[44]

The emergence of the Japanese Mafia can also be expounded using Gambetta's lens. In their investigation, Milhaupt & West explain that Japan experienced a property right boom in the Meiji Period as the country shifted from a feudal system to a modern economy.[45] While the transition was accompanied by the enactment of legal reforms and the centralization of government, the state failed to provide property owners with swift and efficient mechanisms of dispute resolution.[46] At the same time that the demand for contract enforcement and private protection increased, so did the pool of "disenfranchised samurai, hoodlums and poor peasants"[47] who were economically useless to the newly formed market.[48] As in the case of Sicily and Russia, the demand for private protection and dispute resolution met the supply of autonomous protection, leading thereby to the emergence of the modern Yakuza.[49]

In drawing upon the cases of the Russian and Japanese Mafias, it becomes evident that despite the singularities of each case, Gambetta's model can be applied to non-Sicilian jurisdictions. This conclusion lays the building block of this paper given that the reliability of a predictive analysis is largely dependent on the strength of its theoretical foundations. While the conditions proposed by Gambetta are neither individually necessary nor collectively sufficient to cause the birth of the Mafia, it is not unreasonable to expect that the proposed conditions be strongly correlated with the emergence of the Mafia.[50] Indeed, in using a case-oriented approach of Mill's method of agreement (Table 1), evidence is garnered in favor of the argument that postwar Syria will host an environment conducive to the emergence of the Mafia (a point I elaborate in the next part). It is, however, important to note that while the comparative approach will be subsequently supplemented by logical narratives as recommended by Weber, the limited number of cases scrutinized in the case-oriented approach restrict our ability to make casual or generalized statements.[51,52] Indeed, a case-oriented approach of Mill's method of agreement only accounts for probabilistic relationships built within the constraints of a theoretical framework.[53] The method, despite its limitations, remains extremely useful because it allows us to create ideal hypothetical models that aid in the development of arguments about historical convergence.[54]

Table 1. Mill's Method of Agreement.

Gambetta's Framework	Sicily	Russia	Japan	Syria
Economic transformation that leads to an upsurge in transactions involving private property	Yes	Yes	Yes	Yes
The State does accompany the transformation as it fails to implement a robust private property rights regime	Yes	Yes	Yes	Yes
Citizens seek protection from alternative sources in fear of losing property	Yes	Yes	Yes	Yes
Men trained in violence are available to meet the increasing demand for autonomous private protectors	Yes	Yes	Yes	Yes
Emergence of the Mafia	Yes	Yes	Yes	?

To analyze the Syrian case, a qualitative research was conducted with the aim of exploring whether the criteria proposed by Gambetta's framework do apply to Syria. The desk collection of information included online sources, books, articles and newspapers available in the academic public domain. A special focus was given to content that referred to documented patterns and trends, given that, as mentioned before, the prediction of the rise of the Mafia in Syria is based on historical evidence. As such. initiated on the premises of Gambetta's widely acknowledged framework, the research sought to: first, explore the current political and economic situation in Syria; second, identify cases of countries that experienced similar political and economic conditions; third, determine the political and economic fate (outcomes) in these countries that have experienced similar conditions; third, verify whether such conditions could occur in Syria and gather information on their probability; and finally note the individual and peculiar characteristics of the Syrian case regarding all the aforementioned factors.

The Emergence of the Syrian Mafia

In contrast to Sicily, Russia and Japan, the Syrian Mafia is not expected to emerge as a result of a shift from feudalism or socialism to a market economy. Heretofore governed by a market economy, Syria is instead likely to experience a shift from a war paradigm to a postwar paradigm. On a macro-economic level, the cessation of hostilities will entail the abandonment of the currently prevalent war economy. Instead of being substituted by a democratic and liberal peace economy, however, evidence from other similar war-torn jurisdictions suggests that the war economy in Syria is much more likely to be succeeded by a shadow economy. As mentioned previously, the illicit character of economic transactions undertaken in the shadow economy will inevitably elicit demand for the protection services of the Mafia.[55] On a micro-economic level, the cessation of hostilities will predictably imply the return of a large number of displaced individuals. Housing, land, and property disputes are bound to soar given that the developments of the war have undermined the previously existing property rights regime. In the face of a fragile postwar state that is unable or unwilling to define and enforce property rights in the licit and illicit markets respectively, citizens will resort to alternative means of protection when undertaking property transactions. The demand for private protection will be met by the supply of a large pool of former combatants whose violent skills become economically useless in the postwar scenario. As Gambetta's framework indicates, it is within this context that the Syrian Mafia is most likely to be conceived.

Before going into more detail on the birth of the Mafia in Syria, it is essential to first establish that the Mafia was nonexistent prior to the eruption of the war. As such, the following part of the paper will be divided into two sections: in the first, I lay out a brief description of the antecedents of the Syrian War, and in the second, I elaborate the conditions that arise in the postwar context and which lead to the emergence of the Mafia.

Pre-War Syria

Though Mafia-types organizations were absent in pre-war Syria, organized crime was not. This is because for organized crime to categorically qualify as Mafia, it must at least

be supplied by *autonomous* protection providers.[56] As in the case of the Sicilian Mafia under the Fascist regime, in the context of pre-war Syria, such autonomous groups did not stand the chance to emerge given that the Syrian State tightly retained its monopoly over the use of violence.[57,58] In this context, the most prevalent type of crime carried out by OCGs in pre-war Syria was corruption.[59] According to Transparency International's Crime Perception Index prior to the outbreak of the war Syria scored 2.6 out of 10 on a scale where the lowest scores indicated the highest levels of corruption.[60] Corruption in Syria was so prevalent that it overshadowed the need for alternative property protection that would be potentially elicited as a result of inefficient systems of dispute settlement. Indeed, while a World Bank report revealed that Syria ranked low in terms of enforcement of contracts (holding the 174th place out of 181 countries with a legal dispute taking up to 872 days to be concluded), Mafia-like organizations still did not emerge in pre-war Syria.[61] According to the Overseas Security Advisory Council (2010), this can be attributed to the "cultural mores against property crime and to the pervasive police and security presence throughout the country".[62,63] Thus, whenever there was a demand for private protection, this was extra-legally supplied by agents connected to the State.[64] Similarly to the corruption that prevailed in the Soviet Union, in Syria "coalitions of corrupt officials did not resort to structures outside the state apparatus in order to produce violent threats. They had to bargain with the army or police heads for their backing".[65] Thus, the black economy in pre-war Syria operated in a system largely dependent on the State.

As to the governance of land in Syria, the system was not particularly effective even prior to the conflict. Rough estimates by the Ministry of Local Government disclose that only 50% of Syrian land was officially registered while the remaining 40% only had demarcated boundaries.[66] Although Syria's land area is apportioned into state land (62%) and private land (38%), the governing land tenure[67] system includes rights from coexisting and overlapping legal systems such as the Islamic, the customary, the statutory and other hybridizations.[68] While land registries were established in all the 14 provinces before the war, these only logged transactions falling under the statutory tenure system.[69] In 2010, shortly before the eruption of the conflict, a process that aimed at digitalizing records was initiated. However, this was only intended to be used for transactions occurring thereafter.[70] Thus, all of the land records prior to 2010 were kept paper-based.

The use of informal settlements and the prevalence of informal practices naturally compromised the accuracy of land registries and undermined the security of land tenure. Among the 11 million (out of 22.5 million) Syrians that resided in urban or peri-urban areas, at least one third lived in some sort of informal settlement.[71] While residents of these structures enjoyed basic services such as the provision of electricity and water, the majority did not benefit from security of tenure.[72] In rural areas, where most property rights were obtained via prescription,[73] there was a great reliance on a fusion of customary and Islamic practices.[74] Property transferred through inheritance, for instance, was not always registered officially as it was subdivided among heirs.[75] Moreover, it was not frequent practice for married couples to register their lands jointly, thereby preventing married women from holding official titles of land ownership.[76] Despite their abolishment in 1958, customary laws, along with their institutions and

practices, retained great influence over land dispute management and resolution.[77] Enjoying implicit recognition by the State and therefore legitimacy by the population, these informal mechanisms repealed demands for alternative services of property protection.[78]

The Syrian War and the Subsequent Rise of the Syrian Mafia

From a War Paradigm to a Post-War Paradigm

As per Gambetta's first criteria, the eruption of the war led to an abrupt change in the economic landscape of Syria, especially in what refers to transactions involving private property. Indeed, to begin with, the liberalized market economy shifted to a war economy.[79] According to Goodhand (2003: 2), "the war economy includes […] the production, mobilization and allocation of economic resources to sustain a conflict."[80] As the war in Syria enters its seventh year, the repercussions of the war economy become increasingly hard to ignore. Accompanied by the growth of black and informal markets, the war economy in Syria has led to the mushrooming of illegal markets in provinces such as Aleppo, Deir Ezzor, Raqqa, and Homs.[81] A report by Syrian Center for Policy Research (SCPR) reveals that activities such as weapon, drug, and human trade have run rife.[82]

While it is no secret that many insurgents and terrorist groups resort to criminal activities to fund their operation during the war, the danger rests in the perpetuation of these groups' criminal activities even after 'peace' is declared.[83] Accounts of Bosnia and Herzegovina, Sierra Leone, Liberia, Iraq, and Afghanistan indicate that it is most likely that Syria's economy of war will be replaced by a shadow economy that extends the criminal activities of these groups into times of 'peace'. In Bosnia and Herzegovina for instance, the war economy metamorphosed into a shadow economy after the 1995 resolution of the conflict.[84] While the rise of pockets of criminality in Bosnia and Herzegovina is partly due to the fact that the Dayton Agreement was narrowly focused on ending the hostilities, there is no guarantee that a Syrian peace accord will be anyhow more comprehensive and more committed to addressing the emergent Syrian black market.[85]

In describing the cases of Sierra Leone and Liberia, Vorrath provides a mirror image of postwar Syria: "some direct consequences of the war led to greater vulnerabilities that could be exploited by criminal businesses, namely a (further) decline in economic opportunities and an increase in a young workforce with little education but traumatic experiences in the wars"[86]. A SCPR report has discloses that since the beginning of the conflict and up until 2015, Syria had experienced a total economic loss estimated at $254.7 billion, the equivalent to 468% of the gross domestic product of 2010 in constant prices.[87] It is also estimated that 45.2% of school-age children were not attending school during the years of 2015-2016.[88] As to the case of Iraq and Afghanistan, the strong prevalence of the shadow economy has been associated with the entrenchment of extralegal governance structures developed by warlords amid the devastating wars.[89] Indeed, figures reveal that since the beginning of the conflict and up until 2015, Syria had experienced a total economic loss estimated at $254.7 billion, the equivalent to 468% of the

gross domestic product of 2010 in constant prices.[90] It is also estimated that 45.2% of school-age children were not attending school during the years of 2015-2016.[91]

As to the case of Iraq and Afghanistan, the strong prevalence of the shadow economy has been associated with the entrenchment of extra-legal governance structures developed by warlords amid the devastating wars. This phenomenon has also been characteristic of the Syrian War. In her study, Khalaf exposes the governance structures that have been developed by opposition forces in cities such as Al Raqqa, Aleppo and Deir Ezzor. She explains that even a court has been instituted by the Islamic State to "undertake the regular provision of public goods and big supplies of humanitarian aid. It enforces its own rules and justice systems through its implementing arm, the Islamic police".[92]

As illustrated above, criminal activities undertaken during the war economy in Syria are very likely to have their legacies extended to times of 'peace' through the shadow economy. This means that if the cessation of hostilities is not accompanied by a robust plan to fight the emerging criminal groups, the underworld will be substantially expanded. As per Gambetta's second criteria, once the State does not accompany the economic transformations and fails to implement a robust private property rights regime, it is in this scenario that the services of the Mafia come in handy.

Because the state is unwilling to or incapable of regulating the exchange of private property in that kind of setting, the illicit market calls for the services of the mafia, services which could also be useful in the 'upperworld'. This is likely to be case of post-war Syria, as developments of the war pose great challenges on the ability of the State to restitute lands of internally displaced persons and refugees. Figures by the UNHCR reports suggest that there are approximately 6.5 million people currently displaced inside Syria and another 5.4 million people who have fled the country.[93] Some of those may have been able to prepare their departure and assemble their documentation and possessions upon the outbreak of the war, but the majority experienced a chaotic and immediate withdrawal, leaving behind any documents attesting to their property.[94] Claims for property restitution will also be a challenge to those who do not possess statutory documentation in the first place.[95] As mentioned previously, this includes the large rural population that relied primarily on customary and tribal tenure systems and the numerous inhabitants of informal settlements in urban and peri-urban areas.[96]

In addition to the difficulties associated with the corroboration of their legal title over their assets, returning displaced individuals and refugees will often find themselves in a dispute with secondary and illegal occupants over their lands. Indeed, besides leading to the unignorable deterioration in living conditions, multiple displacement - which is in part caused by the originally poor system of land tenure - has also led to multiple claimants and occupants for the same piece of land. The destruction of housing, land and property (HLP) registries where paper-based land records were kept - especially in Damascus and Homs - has not only disabled claims over HLP assets by original owners, but also gives leeway for the (unlawful) occupation and transfer of assets to other individuals and commercial entities.[97] In fact, a number of opportunists have exploited the weakened legal and institutional environment of the war by seizing HLP assets.[98] Although newly enacted laws require property transactions to undergo clearance from security services and property transfer documents to be verified by public notaries,

undocumented and illegal transactions abound.[99] The hazards of such transactions are likely to spill over to the aftermath of the war, as 'bad faith' transactions are cemented and formalized by subsequent 'good faith' transactions. "In a future return context," Cunial explains, "there will be many challenges in tracing such claims, or in determining superiority where there are multiple competing claims to the same property".[100]

When Demand for the Mafia Meets Supply

In line with the predictive analysis, it is expected that the demand for alternative protection will appear once the Syrian State fails to deal with the repercussions of the war. In fact, there is a high probably that the demand for alternative protection will still materialize even if the pre-war regime emerges victorious in the aftermath of the war. This is because despite possibly having a better military experience and more motivation to oppress any domestic political challengers, including Mafias, it will be extremely challenging for the revived regime, given its widely questionable democratic character, to reascertain and consolidate power and (national and international) legitimacy.[101,102] As any other State that has endured a long-lasting bloody civil war, evidence points out that there is a high probability that Syria will emerge as a fragile State that will be facing serious challenges in dismantling the burgeoning shadow economy and in providing citizens with their property rights in the 'upperworld'. According to Powell, three are the main empirical symptoms of conflict-affected fragile states: "extreme proneness to recurring violent conflict, systematic weakness or failure of the state, and chronic poverty and underdevelopment".[103] These are fairly obvious in the case of Syria. Prone to falling into another cycle of violence, Syria suffers from "greatly sharpened identity cleavages along both sectarian and secular-Islamist lines".[104] The systematic weakness and failure of the state is evidenced in the pockets of extra-legal governance that are laid out across the country in response to the state's inability to provide citizens with food, health services, garbage collection, etc. (Khalaf, 2015). Indeed, some reports reveal that half of all hospitals in Syria are partially or completely destroyed.[105] With 69.3% of the population living in extreme poverty and with the Human Development Index ranking at an all time low of 0.433, Syria is most likely to experience chronic poverty and underdevelopment.[106]

It is in the layout of this fragile state that people will probably seek alternative sources for private protection. If lawful organizations do not reactively sprout to fulfill this demand, the expansion in the black market and the lack of clearly defined and properly enforced property rights will eventually lead to an increase in the demand for services typically offered by Mafia-like organizations – in a process analogous to Sicily, Russia, and Japan. However, as Gambetta stresses, the presence of demand alone does not spur the supply – the availability of autonomous agents willing to protect others is a key part of the equation. It would not be unreasonable to suggest that this supply would be widely available in postwar Syria. Lina Sinjab reports that "there are as many as 1,000 armed opposition groups in Syria, commanding an estimated 100,000 fighters"[107]. While these professionals trained in violence are currently busy with their operations of war, one wonders what will become of them once 'peace' is declared and their violent 'skills' are rendered useless. An official from the Syrian army shares the same worry: "After this crisis, there will be 1,000 more crises — the militia leaders. Two years ago

they went from nobody to somebody with guns and power. How can we tell these [militias] to go back to being a nobody again?".[108]

Conclusions

Developed initially to explain the origins of the Mafia in Sicily, Gambetta's framework has become a valuable analytical tool for the sociological analysis of the emergence of the Mafia in several other parts of the world. Despite its peculiarity in the extent of international involvement, after extensive analysis, one notices that postwar Syria still provides a setting congruent to the criteria of the predictive model. As the war hopefully comes to a close, it is most likely that the emerging fragile State will find it extremely difficult to control the expansion in the black market and to clearly define and enforce property rights. Distrustful of the state, people will probably resort to many of the available professionals trained in violence.

While providing a recipe for the prevention of the birth of the Mafia falls outside the scope of this paper, some things must be said: first, in order to prevent the entrenchment of the black economy, it is essential that the Syrian State focuses on the de-criminalization of the war economy.[109] Of course, a fragile state as the one we expect Syria to be in the wake of the war will hardly be able to enforce such a strategy on its own. As such, the international community must be involved in peace building and state-building in the aftermath of this universal tragedy. It is crucial to note however that the effort to decriminalize the war economy must be coordinated with civil society, which, as an insider group, can significantly contribute to exposing and denouncing local criminal developments.[110]

Second, the Syrian State must focus on restoring the legitimacy of the tenure system, an endeavor that requires the fair restitution of land. Indeed, Murphy argues that the central element of any tenure system is trust, which is simultaneously quickly and easily destroyed but very difficult to restore.[111] While the reliance on customary law has undermined the efficiency of the tenure system, it is this very reliance on customary law that could help restore the effectiveness of the tenure system. Because customary practices cannot be erased in the same way as statutory laws registries, the emerging Syrian State can resort to local knowledge and customs when restituting lands.[112] Third but not least, to prevent the Mafia from emerging, in addition to finding ways to invest in property protection so as to prevent the development of a demand for alternative protection, the Syrian State must also inhibit the formation of a supply of private protection. To prevent these men from building on their acquired violent skills by forming the Mafia, the State should absorb these men into the economy.[113] This is what occurred in Finland for example, when the repeal of the law prohibiting the distribution of alcohol dismantled smuggling networks.[114] While this left many men skilled in violence without a job, the situation did not lead to the formation of the Mafia partly because Finland, pressured by the Soviet reparations it had to pay after WWII, incorporated these able-bodied men into the metalworking industries.[115]

While indeed it is very much likely for the Mafia to emerge in Syria, it is not necessarily the case that it will. In fact, this is one of the main virtues of predictions: by analyzing probable futuristic situations, we are provided with intelligence for changing the course of history.

Notes

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